

Savithramma G Alias P Savithri vs Lakshmi Devi P on 15 December, 2025

IN THE COURT OF THE VIII ADDITIONAL CITY CIVIL
AND SESSIONS JUDGE (CCH-15) AT BENGALURU

Dated this the 15th day of December, 2025.

PRESENT:

Smt. VANI A. SHETTY, B.A.L.,L.L.B.,
VIII Additional City Civil and Sessions Judge,
Bengaluru.

ORIGINAL SUIT No.6787/2022

PLAINTIFFS : 1.Smt.G.Savithramma @
P.Savithri,
W/o. Late P.Venkateswarulu,
Aged about 42 years,

2. Sri.P.V.Srinivas @ Srinivasa.V,
S/o. Late P.Venkateswarulu,
Aged about 21 years,

Both are r/a C/o.Vijay Kumar
and H.V.Nagaraj, No.473, 1st
Floor, Ramaiah Enclave, 11th
Main Road, Opp. to Kamala HP
Gas Agency, Nagasandra,
T.Dasarahalli, Tumkur Road,
Bengaluru - 560073.
(By Sri.Manjunath.B.R, Advocate)
-VERSUS-
DEFENDANTS : 1.Smt.P.Lakshmi Devi,
Major,

2. Sri.P.V.Sathish Kumar,
Major,

3. Sri.P.Subramanyam @
P.Subbarao, Major,
- 2- O.S. No.6787/2022

All are residing at
Ekalavya Nagar, Noonepalli Post,
Nandyal, Andhra Pradesh.

4. The Senior Divisional Security
Commissioner,
Railway Protection Force,
South Western Railway,
Kranthiveera Sangolli Rayanna
Railway Station,
Bengaluru -560 023.

(By Smt.Sona Vakkund- Advocate

for defendant Nos.1 to 3)
(Sri.Megharaj.G.M-Advocate for
defendant No.4)

Date of Institution of the Suit : 20-10-2022

Nature of the Suit (Suit on : Suit for declaration
pronote, Suit for declaration and injunction.
and possession, Suit for injun-
ction etc,)

Date of the commencement : 22-7-2025
of recording of the evidence

Date on which the Judgment : 15-12-2025
was pronounced
Year/s Month/s Day/s

Total duration : 3 years, 1 month, 25 days.

(VANI A. SHETTY)
VIII Additional City Civil and Sessions Judge,
An&/- Bengaluru.

Cont'd..

- 3- O.S. No.6787/2022

JUDGMENT

The plaintiffs have filed the suit against the defendants for declaration to declare that the plaintiff No.1 is the legally wedded wife and the plaintiff No.2 is the son of deceased P.Venkateshwarulu who was employee of the defendant No.4 and for permanent injunction restraining the defendant No.4 to disburse any amount to any person including the defendant Nos.1 to 3.

2. The case of the plaintiffs is that the plaintiff No.1 married late P.Venkateshwarulu on 6.12.2000 in Chitradurga Town as per Hindu rites and customs. From their wedlock, the plaintiff No.2 was born on 4.9.2001. The plaintiff No.1 and late P.Venkateswarulu lived together for 3 years from the date of their marriage and thereafter, late P.Venkateswarulu deserted the plaintiffs without any reason. The plaintiff No.1 on behalf of the plaintiff No.2 has filed a suit in O.S.No.90/2006 against late P.Venkateswarulu and also filed C.Misc.No.81/2016 for recovery of maintenance amount. The plaintiffs have also filed execution petition for recovery of the maintenance Cont'd..

- 4- O.S. No.6787/2022 amount and respectively, the maintenance amount was recovered from late P.Venkateswarulu through his employer the defendant No.4. Said P.Venkateswarulu died on 26.5.2018 before his superannuation. Except the plaintiffs, no one has got legitimate right to

succeed estate of late P.Venkateswarulu. Subsequent to the death of late P.Venkateswarulu, the plaintiffs have approached the defendant No.4 and made an application for payment of terminal and all benefits and suitable job on compensatory grounds. The defendant No.4 has given an endorsement dated 11.10.2022 and refused to pay the terminal benefits on the ground that the defendant No.1 has claimed the said benefits. The plaintiffs are the only successors to the estate of the deceased and they are entitled for family pension and other benefits and suitable job on compensatory grounds on account of death of late P.Venkateswarulu. The defendant Nos.1 to 3 have no right or interest to claim the terminal benefits and job. The defendant Nos.1 to 3 colluding with the defendant No.4 making attempts to deprive the legitimate benefits to the Cont'd..

- 5- O.S. No.6787/2022 plaintiffs. Hence, the plaintiffs have filed the present suit.

3. On service of summons, the defendant Nos.1 to 3 have entered their appearance through their learned Counsel and the defendant No.4 has entered appearance through its learned counsel. The defendant Nos.1 to 3 together filed the written statement and additional written statement and the defendant No.4 has filed separate written statement.

4. In the written statement and additional written statement filed by the defendant Nos.1 to 3, they have contended that deceased P.Venkateswarulu married the defendant No.1 on 7.8.1987 in Ekalavya Nagar, Nandyala, Andrapradesh and from their wedlock, the defendant Nos.2 and 3 are born. The deceased husband of the defendant No.1 with an intention to marry the plaintiff No.1 had filed M.C.No.294/1999 before the Family Court, Bengaluru alleging adultery against the defendant No.1 and obtained an exparte decree of divorce against the defendant No.1 on 6.7.2000. Thereafter, the defendant No.1 has challenged the said exparte decree passed in Cont'd..

- 6- O.S. No.6787/2022 M.C.No.294/1999 in Misc.Petition No.87/2003 before the Family Court and said petition came to be dismissed. Against the said order, the defendant No.1 has preferred MFA.No.8622/2005 before the Hon'ble High Court and Hon'ble High Court has pleased to set aside the exparte decree passed in M.C.No.294/1999 and remanded the matter to the Family Court to decide afresh. Thereafter, after hearing both the parties, M.C.No.294/1999 came to be dismissed which was filed by late husband of defendant No.1 on 30.11.2017 and thereby, the marriage of the defendant No.1 with late P.Venkateswarulu is subsisting. The marriage of the plaintiff No.1 with late P.Venkateswarulu performed on 6.12.2000 is void and she is no way related to late P.Venkateswarulu. Under such prevailing circumstances, the defendant No.1 is the legally wedded wife of late P.Venkateswarulu who died on 26.5.2018 and thereby, the plaintiffs are not entitled for terminal benefits from the defendant No.4. Since, late P.Venkateswarulu died while he was in service, the defendant No.2 or the defendant No.3 are only entitled for job on compensatory grounds. The defendants are Cont'd..

- 7- O.S. No.6787/2022 not having the knowledge of birth of the plaintiff No.2. The plaintiff No.1 being the second wife, she is not entitled for terminal benefits of late P.Venkateswarulu. The defendant Nos.1 to 3 are the only legal representatives being the wife and children of late P.Venkateswarulu and they are entitled for terminal benefits. However, the plaintiff No.2 is also entitled for 1/4th share in the benefits of late P.Venkateswarulu. Hence, sought for dismissal of the

suit.

5. The defendant No.4 in its written statement has contended that the late Sri.P.Venkateshwarulu had not furnished any details regarding his marriage with the plaintiff No.1. It is admitted that late Sri.P.Venkateshwarulu was the employee of the defendant No.4 and was supposed to retire on 31.5.2018. But, he passed away on 26.5.2018 and before his dues were settled, the defendant received a notice in O.S.No.134/2018 filed by the plaintiffs herein and accordingly, the settlement dues have not been disbursed. The defendant No.4 has further contended that it being a central government department shall abide by the law and orders of the Court and it has no Cont'd..

- 8- O.S. No.6787/2022

ill-will or no favour is being done to any body

whosoever. There is no cause of action for filing the suit and hence, sought for dismissal of the suit.

6. On the basis of the above pleadings, the following issues are framed:-

1. Whether the plaintiffs prove that plaintiff No.1 is the legally wedded wife and plaintiff No.2 is the legitimate son of Late P.Venkateshwarulu?

2. Whether the defendants No.1 to 3 prove that defendant No.1 is the legally wedded wife and defendant Nos 2 and 3 are the legitimate children of Late P.Venkateshwarulu?

3. Whether the plaintiffs are entitled for the relief as sought for?

4. What order or decree?

7. In order to prove the case, the plaintiff Nos.1 and 2 got examined themselves as P.W.1 and P.W.4 and got examined two witnesses as P.W.2 and 3 and got marked Ex.P.1 to 25 documents. On the other hand, the defendant Nos.1 and 2 got examined themselves as D.W.1 and 2 and got marked Ex.D1 to D15 documents. The authorised representative of the defendant No.4 got Cont'd..

- 9- O.S. No.6787/2022 examined as D.W.3 and got marked Ex.D16 to 18 documents.

8. Heard the arguments.

9. The answers to the above issues are as under:-

ISSUE No.1 - Affirmative;

ISSUE No.2 - Affirmative;

ISSUE No.3 - Partly in the affirmative; ISSUE No.4 - As per final order, for the following:-

REASONS

10. ISSUE Nos.1 AND 2: The plaintiff No.1 claiming to be the wife of late P.Venkateshwarulu and the plaintiff No.2 claiming to be the son of P.Venkateshwarulu through the plaintiff No.1 have instituted this suit to declare that the plaintiff No.1 is legally wedded wife and the plaintiff No.2 is the son of late P.Venkateshwarulu and entitled to receive all terminal benefits, family pension, PF, gratuity, commutation and other benefits and the compassionate appointment. Further relief is also sought to declare that the judgment and decree passed by the II Addl.Prl.Judge, Family Court, Bengaluru in M.C.No.294/1999 dated 30.11.2017 is not binding on Cont'd..

- 10- O.S. No.6787/2022 the plaintiffs. The consequential relief is also sought restraining the defendant No.4 employer from disbursing any payment to the defendant Nos.1 to 3.

11. The plaintiffs have pleaded that the marriage of the plaintiff No.1 with Venkateshwarulu was performed on 6.12.2000 at Chitradurga and the plaintiff No.2 was born on 4.9.2001 from their wedlock. In support of the said contention, the plaintiffs have produced the marriage invitation card at Ex.P.1 and the birth certificate of the plaintiff No.2 at Ex.P.9. In the plaint, the plaintiffs have not revealed the relationship of the defendant Nos.1 to 3 with late P.Venkateshwarulu. The defendant Nos.1 to 3 have pleaded that P.Venkateshwarulu married the defendant No.1 on 7.8.1987 and thereafter, the defendant Nos.2 and 3 were born to them. In so far as the relationship of the defendant Nos.1 to 3 with late P.P.Venkateshwarulu is concerned, the defendant Nos.1 to 3 have produced certified copy of the judgment passed in M.C.No.294/1999 filed by late P.P.Venkateshwarulu against the defendant No.1 P.Lakshmi Devi at Ex.D.3, wherein P.Venkateshwarulu has admitted his Cont'd..

- 11- O.S. No.6787/2022 relationship with the defendant Nos.1 to 3. Therefore, the documentary evidence and oral testimony available before the Court is sufficient to establish that P.Venkateshwarulu married the defendant No.1 on 7.8.1987 and from that wedlock, the defendant Nos.2 and 3 were born. Further, the evidence is also sufficient to hold that subsequently the P.Venkateshwarulu filed petition for divorce against the defendant No.1 P.Lakshmi Devi which came to be initially decreed on 6.7.2000 and thereafter, he married the plaintiff No.1 on 6.12.2000 and from that wedlock, the plaintiff No.2 was born. Subsequently, the defendant No.1 filed a case in Misc.No.87/2003 to set aside the decree for divorce passed against her in M.C.No.294/1999 filed by P.Venkateshwarulu, which came to be dismissed on 23.7.2005. The defendant No.1 preferred MFA.No.8622/2005 before the Hon'ble High Court which came to be allowed on 1.9.2009 wherein said the judgment and decree passed in M.C.No.294/1999 is set aside and remanded the matter for fresh consideration. Thereafter on fresh consideration, the Family Court in the judgment and decree dated 30.11.2017 dismissed Cont'd..

- 12- O.S. No.6787/2022 the petition filed by P.Venkateshwarulu for divorce against the defendant No.1. In view of this subsequent development, the parties are in dispute with regard to the validity of

the marriage.

12. The plaintiffs have contended that the marriage of the plaintiff No.1 with late P.P.Venkateshwarulu was performed after the decree for divorce in respect of the marriage of P.P.Venkateshwarulu and the defendant No.1 on 6.7.2000 and after the expiry of the period of appeal and hence, the marriage of the plaintiff No.1 is a valid marriage. On the other hand, the defendant Nos.1 to 3 have relied upon the decision of the Hon'ble Supreme Court rendered in the case of Savitaben Somabhai Bhatiya Vs. State of Gujarat and others (AIR 2005 SC 1809) and contended that when the divorce granted on 6.7.2000 is set aside, the marriage of the defendant No.1 was subsisting throughout and therefore, the second marriage of P.Venkateshwarulu with the plaintiff No.1 is nullity.

13. Having regard to the above facts, the core legal issue that is required to be decided is when the Cont'd..

- 13- O.S. No.6787/2022 marriage of the plaintiff No.1 with P.Venkateshwarulu was performed after the expiry of the period prescribed for referring the appeal against the judgment and decree passed for divorce of marriage of P.Venkateshwarulu with the defendant No.1, such marriage can be termed as void merely on the ground that subsequently the decree passed against the defendant No.1 came to be set aside after the marriage of the plaintiff No.1 with P.Venkateshwarulu. In this regard, it would be convenient if the sequence of events are referred which are as hereunder:-

7.8.1987 The date of marriage of the defendant No.1 with P.Venkateshwarulu.

6.7.2000 The date of divorce of P.Venkateshwarulu with the defendant No.1.

6.12.2000 The date of marriage of the P.Venkateshwarulu with the plaintiff No.1.

23.7.2005 The date of disposal of Misc.Petition No.87/2003 filed by the defendant No.1 in the year 2003. 1.9.2009 The date of disposal of M.F.A.No.8622/2005 filed by the defendant No.1 in the year 2005. 30.11.2017 The date of disposal of M.C.No.294/1999 after remand.

14. Section 15 of Hindu Marriage Act prescribes when a divorced person can marry again. As per Section 15 of the said Act, when a marriage has been dissolved Cont'd..

- 14- O.S. No.6787/2022 by a decree of divorce and either there is no right of appeal against the decree or, if there is such a right of appeal, the time for appealing has expired without an appeal having been presented, or an appeal has been presented but has been dismissed, it shall be lawful for either party to the marriage to marry again. Section 28(4) of Hindu Marriage Act, 1955, prescribes 90 days period for preferring an appeal from the date of the decree. As stated above, in the present case, P.Venkateshwarulu married the defendant No.1 on 7.8.1987 and thereafter, P.Venkateshwarulu filed a petition for divorce against the defendant No.1 in M.C.No.294/1999. The defendant Nos.1 to 3 have admitted in their written statement that earlier it was decreed on 6.7.2000 and P.Venkateshwarulu married the plaintiff No.1 on 6.12.2000. Therefore, after passing

the decree for divorce on 6.7.2000, the defendant No.1 preferred the case for the first time in Misc.No.87/2003. The date of filing of Misc.No.87/2003 is not disclosed by any of the parties. The plaintiffs have produced the order passed by the Hon'ble High Court in MFA No.8622/2005 which indicates the date and year Cont'd..

- 15- O.S. No.6787/2022 of filing of Misc.No.87/2003 and its date of disposal. Therefore, it is not in dispute that though the decree was passed in favour of P.Venkateswarulu on 6.7.2000, it was challenged by the defendant No.1 for the first time in the year 2003 by filing Misc.No.87/2003. Till then the defendant No.1 has not challenged the decree passed in favour of P.Venkateswarulu on 6.7.2000. P.Venkateswarulu waited till 6.12.2000 and thereafter, he married the plaintiff No.1. He has married the plaintiff No.1 exactly after five months from the date of decree for dissolution of marriage passed in his favour. Therefore, within the period of 90 days from 6.7.2000, neither there was any appeal nor any order against the decree of divorce passed in his favour. Under these circumstances, when the plaintiff No.1 had married P.Venkateswarulu, there was no subsisting marriage in between the defendant No.1 and P.Venkateswarulu. Though subsequently the M.C.No.294/1999 was remanded by the Hon'ble High Court in MFA No.8622/2005 in its order dated 1.9.2009 and later M.C.No.294/1999 came to be dismissed on 30.11.2017, the marriage of the plaintiff No.1 with Cont'd..

- 16- O.S. No.6787/2022 P.Venkateswarulu was performed after the appeal period was over and it was in accordance with Section 15 of Hindu Marriage Act, 1955. The next question is with regard to the consequence of setting aside of the decree for divorce by the Hon'ble High Court in MFA No.8622/2005 dated 1.9.2009. As stated above, even if the decree was set aside, subsequently the marriage of the plaintiff No.1 with P.Venkateswarulu was permissible under Section 15 of Hindu Marriage Act, 1955. This type of situation is dealt by the Hon'ble Supreme Court in the case of Krishnaveni Rai Vs. Pankaj Rai and another ((2020) 11 Supreme Court Cases 253), wherein the Hon'ble Supreme Court has clarified that even if a party contracts second marriage during the pendency of the appeal, if such appeal was filed after the period of limitation, the second marriage cannot be considered as void marriage. In this regard, the Hon'ble Supreme Court in para Nos.31 and 32 of the judgment held as hereunder:-

In any case, the bar of Section 15 is not at all attracted in the facts and circumstances of this case, where the appeal from decree of divorce had been Cont'd..

- 17- O.S. No.6787/2022 filed almost a year after expiry of the period of limitation for filing an appeal. Section 15 permits a marriage after dissolution of a marriage if there is no right of appeal against the decree, or even if there is such a right to appeal, time of appealing has expired without an appeal having been presented, or appeal has been presented but has been dismissed. In this case, no appeal had been presented within the period prescribed by limitation.

The bar, if any, under Section 15 of Hindu Marriage Act applies only if there is an appeal filed within the period of limitation, and not afterwards upon condonation of delay in filing an appeal unless of course, the decree of divorce is stayed or there is an

interim order of Court, restraining parties or any of them from remarrying during pendency of appeal.

15. The above legal position makes it clear that when the plaintiff No.1 married P.Venkateshwarulu under Section 15 of Hindu Marriage Act, 1955, her marriage cannot be considered as a nullity merely because at a later point of time, the divorce granted in Cont'd..

- 18- O.S. No.6787/2022 favour of her husband was set aside. Added to this, the order passed by the Hon'ble High Court indicates that though there was notice, the defendant No.1 did not contest M.C.No.294/1999 at the first instance. It clearly shows that she was aware about the M.C.No.294/1999 filed by P.Venkateshwarulu. Having regard to these aspects, the marriage of the plaintiff No.1 with P.Venkateshwarulu was a valid marriage which is permissible under Section 15 of Hindu Marriage Act, 1955. It cannot be considered as invalid due to the subsequent setting aside of the decree. Similarly, though there was a decree for dissolution of the marriage of the defendant No.1, later M.C.No.294/1999 filed by P.Venkateswarulu came to be dismissed and therefore, the marriage of the defendant No.1 with P.Venkateshwarulu also restored and thereby, considering the peculiar facts and circumstances of the case, both the marriages are required to be considered as valid marriages and both are legally wedded wives.

Consequently, the issue Nos.1 and 2 are answered in the affirmative.

Cont'd..

- 19- O.S. No.6787/2022

16. ISSUE NO.3: Now the question for

consideration is with regard to the distribution of the assets left by late P.Venkateshwarulu among the parties. It is an admitted fact that P.Venkateshwarulu was an employee with the defendant No.4 Railway protection force and he died during the service on 26.5.2018 before his superannuation. The plaintiffs have sought for disbursement of the entire death benefits of P.Venkateshwarulu to them. The defendant Nos.1 to 3 have taken up a contention that only the plaintiff No.2 is entitled for 1/4th share and the defendant Nos.1 to 3 are entitled for 3/4th share. But while answering issue No.1, this Court has held that the plaintiff No.1 is also the legally wedded wife of late P.Venkateshwarulu. Therefore, among the plaintiff No.2 and the defendant Nos.1 to 3, the plaintiff No.1 is also a class-I legal heir to P.Venkateshwarulu. In view of this, all the properties left by P.Venkateshwarulu shall be distributed among his class-I legal heirs who are the plaintiffs and the defendant Nos.1 to 3.

17. The defendant No.4 has deposited a sum of Rs.19,42,073/-. As per the order passed by the Court Cont'd..

- 20- O.S. No.6787/2022 dated 20.11.2023, the 1/5th share of the defendant No.1 amounting to Rs.3,88,415/- came to be disbursed to the defendant No.1. It is also indicates that the balance amount of Rs.15,53,658/- is pending. It is required to be divided equally along with the accrued interest between the plaintiffs and the defendant Nos.2 and 3. The next question is with regard to the eligibility of family pension. While answering the issue Nos.1 and 2, this Court has held that the plaintiff No.1 and the defendant No.1 are both wives of late P.Venkateswarulu. The plaintiff No.2 and the defendant Nos.2 and 3 are admittedly majors. Therefore, they are not entitled for pension. When the Court has held that both the plaintiff No.1 and the defendant No.1 are legally wedded wives of P.Venkateswarulu, both are entitled for family pension. Hence, the defendant No.4 shall distribute the family pension payable to P.Venkateswarulu equally among the plaintiff No.1 and the defendant No.1.

18. The last question that is required to be decided with regard to the compassionate appointment. Whether the compassionate appointment is a civil right Cont'd..

- 21- O.S. No.6787/2022 and whether the civil Court has any right to direct the authorities for the appointment of a specific person on compassionate ground is also a legal issue. It is true that the object of compassionate employment is to enable the family of the deceased employee to manage the crisis from the sudden death of the bread earner of the family. The compassionate appointment is made on humanitarian consideration. The government is entitled to make a suitable scheme for the compassionate appointment. The principle relating to compassionate appointment is summarized by the Hon'ble Supreme Court in the case of V.Sivamurthy Vs. State of Andhra Pradesh and others (2008)13 SCC 730, in the following words:-

The principles relating to compassionate appointments may be summarized thus :

(a) Compassionate appointment based only on descent is impermissible. Appointments in public service should be made strictly on the basis of open invitation of applications and comparative merit, having regard to Articles 14 and 16 of the Constitution of India. Though no other mode of appointment is permissible, appointments on compassionate grounds are well recognised exception to the said general rule, carved out in the interest of justice to meet certain contingencies.

Cont'd..

- 22- O.S. No.6787/2022

(b) Two well recognized contingencies which are carved out as exceptions to the general rule are :

(i) appointment on compassionate grounds to meet the sudden crisis occurring in a family on account of the death of the bread-winner while in service.

(ii) appointment on compassionate ground to meet the crisis in a family on account of medical invalidation of the bread winner.

Another contingency, though less recognized, is where land holders lose their entire land for a public project, the scheme provides for compassionate appointment to members of the families of project affected persons. (Particularly where the law under which the acquisition is made does provide for market value and solatium, as compensation).

(c) Compassionate appointment can neither be claimed, nor be granted, unless the rules governing the service permit such appointments. Such appointments shall be strictly in accordance with the scheme governing such appointments and against existing vacancies.

(d) Compassionate appointments are permissible only in the case of a dependant member of family of the employee concerned, that is spouse, son or daughter and not other relatives. Such appointments should be only to posts in the lower category, that is, class III and IV posts and the crises cannot be permitted to be converted into a boon by seeking employment in Class I or II posts.

19. The Hon'ble Supreme Court in the recent judgment rendered in the case of Mukesh Kumar and Cont'd..

- 23- O.S. No.6787/2022 another Vs. Union of India and others ((2022) 14 SCC

161) by relying upon the judgment of V.Shivamurthy held that the policy for compassionate appointment has the force of law. In this regard in para Nos.8 and 9, the Hon'ble Supreme Court has held as hereunder:-

8. Apart from discrimination ensuring from treating equals unequally, which is writ large as demonstrated in the judgment of this Court referred to above, there is also discrimination on the ground of descent, which is expressly prohibited under Article 16(2). In V.Sivamurthy Vs. State of A.P, this Court observed that appointments made only on the basis of descent is impermissible.

However, compassionate appointments are a well-recognized exception to the general rule if they are carved out in the interest of justice to meet public policy considerations. It lends justification only that far and no further.

9. While compassionate appointment is an exception to the constitutional guarantee under Article 16, a policy for compassionate appointment must be consistent with the mandate of Article 14 and 16. This is to say, a policy for compassionate appointment, which has the force of law, must not discriminate on any of the grounds Cont'd..

- 24- O.S. No.6787/2022 mentioned in Article 16(2) including that of descent.

20. The compassionate appointment shall be made by the concerned government/department in accordance with the scheme/rules formulated by the government. It is within the domain of the concerned government/department to pass a suitable order in this regard. But such appointment shall be strictly in accordance with the rules and scheme/circular made by the

government/department. The learned counsels have argued about the rules framed by the Railway department and the circulars issued in this regard. No doubt, the rules framed and the circulars issued in this regard shall be consistent with the mandate of constitutional principles. But its correctness cannot be examined by a civil Court. It is true that there was a dispute as to who is the legally wedded wife of late P.Venkateshwarulu. This Court has recorded a specific finding that both the plaintiff No.1 as well as the defendant No.1 are the legally wedded wives of late P.Venkateshwarulu. Hence, the plaintiff No.2 as well as the defendant Nos.2 and 3 are the sons of late Cont'd..

- 25- O.S. No.6787/2022 P.Venkateshwarulu and their status is similar without any difference. The civil Court can declare their status. Now, the Court has already declared their status. In so far as compassionate appointment is concerned, the concerned authorities are required to consider the various aspects. It may include the educational qualification, suitability and merits. A civil Court cannot decide who is suitable to be appointed on compassionate ground. A civil Court can only declare their status. The action of the department cannot be questioned before the civil Court and the civil Court cannot sit as an appellate Court against the decision of the defendant No.4 relating to compassionate appointment. Therefore, the right of compassionate appointment cannot be considered as civil right. When it is not a civil right, the civil Court cannot take cognizance of it. Therefore, having regard to the status, it is left to the defendant No.4 to take a suitable action for the compassionate appointment in accordance with the rules/scheme framed by the defendant No.4 after considering the suitability and merits for the job that is available or that can be made available. Hence, this Cont'd..

- 26- O.S. No.6787/2022 Court being a civil Court cannot direct the defendant No.4 to declare as to who is suitable to be appointed on compassionate appointment. On these observations, the issue No.3 is answered partly in the affirmative.

21. Issue No.4:- It is true that the defendant Nos.1 to 3 have not sought any relief in the present suit. But though the plaintiffs have sought the relief of declaration, the Court can mould the relief and pass the suitable orders. It is also well settled law that even if in a suit for declaration, the Court can mould the relief and grant partition. Such being the case, it would be appropriate to record a finding with regard to the entitlement of the death benefits and family pension benefits of deceased P.Venkateshwarulu. As observed above, in so far as the compassionate appointment is concerned, the plaintiff No.2 and the defendant Nos.2 and 3 are entitled to file necessary application before the defendant No.4 and on such filing of the application, the defendant No.4 is at liberty to take suitable decision in accordance with the scheme/rules governing the compassionate appointment with the defendant No.4. On these observations, with regard to Cont'd..

- 27- O.S. No.6787/2022 the nature of the genuine dispute between the parties which required legal interpretation, while decreeing the suit, it is not proper to award cost. Hence, the following order is passed:-

ORDER The suit is decreed in part.

It is declared that the plaintiffs and the defendant Nos.1 to 3 are entitled for 1/5th share each in the death benefits of late P.Venkateshwarulu. As the 1/5th share of the defendant No.1 in the death benefits of late P.Venkateswarulu is already disbursed to her, the plaintiffs and the defendant Nos.2 and 3 are entitled for 1/4th share in the remaining amount of death benefits along with proportionate interest accrued if any.

The plaintiff No.1 and the defendant No.1 both are declared as legally wedded wives of late P.Venkateshwarulu and they are entitled for the family pension of late P.Venkateshwarulu in the ratio of 50% each. The defendant No.4 shall disburse the family pension of late P.Venkateshwarulu to the plaintiff No.1 and the defendant No.1 in equal proportion.

Cont'd..

- 28- O.S. No.6787/2022 The plaintiff No.2 and the defendant Nos.2 and 3 are entitled to submit an application to the defendant No.4 for their compassionate appointment. On filing of such application, the defendant No.4 is at liberty to take suitable decision as per the relevant rules/scheme considering the educational qualification, suitability, merits and other requirements in accordance with law.

Draw decree accordingly.

[Dictated to Stenographer Grade-I, transcribed by her, revised by me and after corrections, pronounced in open Court on this the 15 th day of December, 2025.]
(VANI A. SHETTY) VIII Additional City Civil and Sessions Judge, Vs/- Bengaluru.

ANNEXURE

1. WITNESSES EXAMINED FOR THE PLAINTIFFS:

Examined on:

P.W.1: Smt.G.Savithramma @ P.Savithri 22-07-2025 P.W.2: Smt.Jayalakshmi
30-08-2025 P.W.3: Manjulamma 30-08-2025 P.W.4: Srinivasa.P 19-09-2025

2. DOCUMENTS MARKED ON BEHALF OF PLAINTIFFS:

Ex.P.1 : Notarized copy of marriage invitation Ex.P.2 : Application dated 31.8.2018
Ex.P.3 : Application dated 10.10.2022 Ex.P.4 : Notarized copy of petition in
P&Sc.No.3/2005 Cont'd..

Ex.P.5 : Notarized copy of order in
Crl.Misc.No.81/2016

Ex.P.6 : Original death certificate of
P.Venkateshwarulu
Ex.P.7 : Notarized copy of order in Ex.No.32/2021
Ex.P.8 : Notarized copies of photos
Ex.P.9 : Birth certificate of plaintiff No.2
Ex.P.10 : Discharge summary of hospital
Ex.P.11 : Notarized copy of petition in
Ex.No.32/2012
Ex.P.12 : Notarized copy of petition in
Ex.No.211/2016
Ex.P.13 : Notarized copy of order in
Ex.No.211/2016
Ex.P.14 : Notarized copy of petition in
Ex.No.185/2017
Ex.P.15 : Notarized copy of order in
Ex.No.185/2017
Ex.P.16 : Notarized copy of petition in
Crl.Misc.No.591/2017
Ex.P.17 : Notarized copy of order in
Crl.Misc.No.591/2017
Ex.P.18 : Notarized copy of petition in
Crl.Misc.No.307/2018
Ex.P.19 : Notarized copy of order in
Crl.Misc.No.307/2018
Ex.P.20 : Notarized copy of II PUC marks card
Ex.P.21 : Notarized copy of SSLC marks card
Exs.P.22
to 24 : photoes
Ex.P.25 : Notarized copy of judgment in
O.S.No.90/2006

Cont'd..

- 30- O.S. No.6787/2022

3. WITNESSES EXAMINED FOR THE DEFENDANTS:

D.W.1 : P.Lakshmidevi 10-10-2025 D.W.2 : P.V.Satish Kumar 10-10-2025 D.W.3 :
E.Sathish Rao 7-11-2025

4. DOCUMENT MARKED ON BEHALF OF DEFENDANTS:

Ex.D.1 : Notarized copy of petition in O.S.No.134/2018 Ex.D.2 : Office copy of legal
notice Exs.D.3 &4 : Notarized copy of judgment and decree in MC.No.294/1999
Ex.D.5 : Notarized copy of evidence in MC.No.294/1999 Ex.D.6 : Notarized copy of
I.A in O.S.No.134/2018 Ex.D.7 : Notarized copy of petition in O.S.No.134/2018
Ex.D.8 : Notarized copy of judgment in O.S.No.134/2018 Ex.D.9 : Notarized copy of

objection in O.S.No.134/2018 Ex.D.10 : Notarized copy of Issues in O.S.No.134/2018 Ex.P.11 : Notarized copy of order in W.P.No.15315/2022 Ex.P.12 : Notarized copy of order in O.S.No.134/2018 Ex.D.13 : Notarized copy of SSLC marks card Ex.D.14 : Notarized copy of 12th marks card Ex.D.15 : Notarized copy of B.Sc., provisional certificate Ex.D.16 : Permission letter Cont'd..

- 31- O.S. No.6787/2022 Ex.D.17 : Notarized copy of Service Register Ex.D.18 : Arrears of pension nomination form (VANI A. SHETTY) VIII Additional City Civil and Sessions Judge, Vs/- Bengaluru.

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VANI A

SHETTY

by VANI A

SHETTY

Date: 2025.12.17

17:43:41 +0530

Cont'd..

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